

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

January 28, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Mayor Kaysen noted clerical corrections on the numbering of items (2) contained on the first page of the meeting agenda. Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 14, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry, information was provided by Mayor Kaysen and applicable staff on the following vouchers presented for payment: Alsco (\$1,388.79), laundry services for floor mats, shirts, uniforms, etc.; Belfor Property Restoration (\$2,468.20), emergency boarding-up of an abandoned property located near an elementary school involving unacceptable activities (City seeking restitution from the property owner); Brown's Shoe Fit Co. (\$249.98), steel-toed safety boots and foot ware (re: employee clothing allowance program approved for certain departments); Employers Council Services Inc. (\$164.63), expenses affiliated with work place investigation involving a personnel matter; Gametime (\$1,725.36), slide replacement in Sun Valley Park due to vandalism; High West Energy (\$25.20), utility (electric) bill for welcome to Cheyenne sign at Archer Interchange; Mingles Lounge (\$100.00), refund of business license application fee due to non-approval of application; VISA/UMB (\$462.66), credit card charge to Bird-X, Inc. for decoys to discourage geese presence in parks. Staff providing information on the aforementioned vouchers were: Jim Elias, Public Works Director; Rick Parish, Parks and Recreation Director; Nathan Beauheim, Acting City Engineer; Lois Huff, City Treasurer, and Carol Intlekofer, City Clerk. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

ORDINANCE - Amending Section 12.16.020, Planting of certain species of trees and shrubs in public rights-of-way - Limited, of Chapter 12.16, Trees and Shrubs, of Title 12, Streets, Sidewalks and Public Places, of the Cheyenne City Code pertaining to the planting of certain trees within the

tree lawn area. Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Mr. Shanor. Motion carried. Voting “yes” -- all members of the governing body. (#3967)

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the Zoning Classification from CB Community Business District to MUB Mixed-Use with Business Emphasis District for Lot 4, Block 486, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Hugur Avenue and E. 12th Street, approximately 500 feet northwest of the intersection of Logan Avenue and Nationway). Mr. Allen moved to approve on second reading, seconded by Mr. Cook. Upon inquiry, Brandon Cammarata, Planning and Development Director, advised the applicant is planning on upgrades to the residential structure located on the property and is pursuing the MUB classification as it allows more latitude and provides more certainty for the owner that the residential use can remain. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the zoning classification from HR-2 High Density Residential – Developing District to MR-2 Medium Density Residential – Developing District for Lots 1-6, Block 1, and Lots 1-6, Block 2, Diamond Estates, Fourth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Rio Verde Street and Pierce Avenue). James Perrott Macneil questioned ownership of property in the Cheyenne area, and spoke in opposition to zone changes generally. Mr. Brown raised a point of order that Mr. Macneil’s comments were not relevant to the motion on the floor. Mayor Kaysen ruled that comments should remain specific to the zone change affiliated with the motion. Mr. Allen moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential District to HR-2 High Density Residential – Developing District for a tract of land situated in a portion of the East Half of the East Half (E½E½) of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming, to be known as Scenic Subdivision (located approximately 150 feet west of the intersection of Converse Avenue and Ogden Road) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Adopting the combined Cheyenne/Laramie County Hazard Mitigation and Strategy Plan 2012. Motion (per Consent Agenda) carried. (#5468)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5469)

RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the East Half of the East Half of Section

20 and a portion of the Southwest Quarter of the Southwest Quarter of the Northwest Quarter of Section 21, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located approximately 1,500 feet north of the intersection of Converse Avenue and Ogden Road). Mr. Allen moved to adopt, seconded by Mr. Shanor. Mr. Allen moved to postpone for two weeks (to Feb. 11, 2013), seconded by Mr. Luna. Motion to postpone carried. Voting "yes" -- all members of the governing body.

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Capitol Basin West Edge Trunk-line Interceptor Project. Motion (per Consent Agenda) carried. (#5470)

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Lake Minnehaha Water Quality and Drainage Project, Phase II. Motion (per Consent Agenda) carried. (#5471)

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for two traffic signals at 19<sup>th</sup> Street and Evans Avenue, and 20<sup>th</sup> Street and Evans Avenue. Motion (per Consent Agenda) carried. (#5472)

[CA] RESOLUTION - Prioritizing the City of Cheyenne's three Grant requests for Mineral Royalty Capital Construction Account Grant (Chapter 3) applications to the State Loan and Investment Board for the application deadline of February 21, 2013. Motion (per Consent Agenda) carried. (#5473)

[CA] RESOLUTION - Supporting an Agreement, and Authorizing the Mayor to sign a Contingency & Development Agreement between parties involved in the Microsoft Dataplant Demonstration Project utilizing Grant funds from the Wyoming Business. Motion (per Consent Agenda) carried. (#5474 Resolution/#5956 Contract)

[CA] RESOLUTION - Approving Water and Sanitary Sewer Service, by User's Agreement, with Merrill, Inc., a Wyoming Corporation, 4703 Wright Court, Cheyenne, Wyoming -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] RESOLUTION - Approving Outsider User Water/Sewer Services, by User's Agreement, with Microsoft Corporation, Lot 2, Block 1, North Range Business Park, Fifth Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor - Mr. Valdez).

Preliminary Plat for Diamond Estates, Fourth Filing, a replat of a portion of Tract 316, Sunnyside Addition, Seventh Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Rio Verde Street and Pierce Avenue). James Perrott Macneil spoke in opposition to the item and questioned whether Section 20 is Union Pacific (U.P.) property or federal property. Mayor Kaysen clarified the agenda item does not reference a section number and that it is not U.P. property. Mr. Allen moved to acknowledge receipt with staff conditions #1 through 4, seconded by Mr. Cook. Comment of concern was expressed regarding the development design relative to garage placements resulting in visual predominance in the neighborhood. Motion carried. Voting "yes" --

all members of the governing body with the exception of Dr. Rinne voting “no”.

[CA] Preliminary Plat for Scenic Subdivision, a tract of land situated in a portion of the East Half of the East Half (E½E½) of Section 20, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (located north of and adjacent to the existing WalMart store) (Annexation in process) -- referred to Public Services Committee.

Professional Services Contract between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization (MPO) and Fehr & Peers for 2010 Travel Demand Forecasting Model Calibration (MPO Planning funds). Reporting for Finance Committee, Mr. Brown moved to approve in an amount not to exceed \$78,760.00, seconded by Mr. Valdez. Upon inquiry, Tom Mason, MPO Director, explained the role of the MPO Policy Committee in budgeting, reviewing and setting priorities of street projects, and explained that if a project isn't funded for a specific budget year, it may be reconsidered for possible inclusion on a future project list. He noted the Committee meets annually to discuss the MPO budget as well as on a quarterly basis. In response to query concerning the status of Parsley Blvd. being included on a project list relative to a past study, Mr. Mason advised that a 2004 study looked at the street network generally for all of south Cheyenne, including this area, and stated that Parsley Blvd. will be looked at in the future in more detail. He explained the contract will assist with traffic calibration information. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Luna voting “no”. (#5953)

[CA] Contract Modification No. 1 to Contract No. 5911 between the City of Cheyenne, Parks and Recreation Department, and Ayres Associates for additional retaining wall design to stabilize steep shoreline areas around Lake Minnehaha in Holliday Park (SLIB Grant funding) -- referred to Finance Committee.

[CA] Consideration of Bid #M-7-13 for a contract between the City of Cheyenne and Inman Roofing, Inc., Cheyenne, Wyoming, for roof replacement at the Neighborhood Facility Building. Motion (per Consent Agenda) carried. (#5954)

[CA] Authorization to purchase traffic striping paint under Wyoming Department of Transportation Bid No. 12-325TZ (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Transfer of ownership for a retail liquor license application filed with the City Clerk's Office for RMH Franchise Corporation d/b/a Applebee's Neighborhood Grill & Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming (License currently held by Concord Neighborhood Corporation d/b/a Applebee's Neighborhood Grill & Bar, 1401 Dell Range Blvd., Cheyenne, Wyoming). Motion (per Consent Agenda) carried.

Appointment of Jane M. France to the Community Action of Laramie County, Inc. Board of Directors. Mr. Brown moved to approved, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Re-Appointments of Shane Moore, Charles R. Livermont and Gale Shenefelt to the Mayor's Council for People with Disabilities. Mr. Brown moved to approved, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of the Re-Appointments of Mal R. Burnside, Marty Crowe, Michael A. Metzler, and Jason Stephen to the Contractor Licensing Board; and William C. Beaman to the City of Cheyenne, Wyoming-Laramie County, State of Wyoming Joint Powers Board for Frontier Park improvements, to be confirmed February 11, 2013.

Announcement was made of the Appointment of John G. Knepper to the Board of Adjustment, to be confirmed February 11, 2013.

Under other business, James Perrott Macneil spoke in opposition to any development or encroachment on any U.P properties or the Belvoir Ranch.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:40 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

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